

Court No. - 29

Case :- WRIT - C No. - 40898 of 2024

Petitioner :- Dharampal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dr. Akhilesh Kumar

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Ashwani Kumar Mishra,J.

Hon'ble Donadi Ramesh,J.

Petitioner is aggrieved by issuance of bill for consumption of electricity, issued by the respondent no. 3 on following grounds:-

- (i) the address at which the connection is issued is wrong;
- (ii) petitioner's father since has died, therefore, the connection be mutated in the name of the petitioner;
- (iii) load factor is incorrectly mentioned;
- (iv) the quantification of dues payable is incorrect.

Sri Baleshwar Chaturvedi, learned counsel for the respondent states that the nature of dispute raised by the petitioner would require determination of factual issues for which appropriate remedy of the petitioner would be to approach the competent authority in terms of clause 4.4 and 6.5 of the U.P. Electricity Supply Code, 2005.

The competent forum in terms of the statutory scheme to examine petitioner's claim would be the third respondent. In such circumstances, we permit the petitioner to make an exhaustive representation annexing all materials in support of his claim before the third respondent alongwith a certified copy of this order within a week from today. In the event such a claim is raised, the concerned authority shall accord consideration to the issues and would pass necessary orders within a period of four weeks from the date of presentation of a certified copy of this order.

With the above observations/directions, the writ petition stands disposed of.

Order Date :- 6.1.2025

Ranjeet Sahu